

RELEASE, WAIVER, AND QUITCLAIM

NAME: _____

ADDRESS: _____

1. I voluntarily took part and participated in the event below:

Event Name: MOUNTAIN DEW - PLAY NO DEW

Sponsor: Pepsi Cola Products Philippines Inc. and Pepsi Cola Far East Trade Dev Co. Inc ("Company")

2. I confirm that I am not an employee, officer, director, or member of the Company, its affiliates ("Affiliated Parties"), or any entity involved in the Event ("Other Parties"). I also declare that I am not an immediate family member (spouse, parent, step-parent, child, step-child, sibling, step-sibling, grandchild, step-grandchild or other family extension) of any such individual.

3. I confirm that I meet all eligibility requirements stated in the Promo rules (e.g. as to my age, or place of residence, or other qualifications). I also declare that I have no debilitating or communicable disease that could pose a risk to myself or others during the Event.

4. I hereby attest that the promo mechanics, terms and conditions, and/or rules and regulations ("Promo Rules") were made available to me, have been read and understood by me, had the opportunity to read and understand the same, and/or were explained to me by the Company, the Affiliated Parties, or their third-party advertising or promotional agencies, prior to the execution of this Release, Waiver, and Quitclaim ("Quitclaim"). I further acknowledge and agree to bind myself to abide with these Promo Rules.

5. I acknowledge that participating in the Event and accepting any prize is at my own risk. I, along with my heirs and estate (collectively, "Successors"), release and hold harmless the Company, the Affiliated Parties, the Other Parties, and their officers, employees, and agents (collectively, the "Released Parties") from any claims or liabilities (collectively, "Claims"). This release includes any harm, injury, loss, or expense arising from my participation, acceptance, or use of a prize (collectively, "Harm"). I also waive any claims related to the Company's, the Affiliated Parties', and the Other Parties' use of my name, likeness, or biographical data (collectively, the "Released Claims").

6. I agree to indemnify and hold harmless the Released Parties from any Claims, including attorney's fees, arising from my submitted materials or the Released Party's use of them.

Confidential - Not for Public Consumption or Distribution

This includes third-party claims related to intellectual property, publicity, or privacy rights.

7. I understand that this release prevents me and my Successors from suing or seeking damages from the Released Parties in connection with any of the Released Claims.
8. I acknowledge and agree that my receipt of the prize of the Event may be subject to applicable government taxes. So, I shall be solely responsible to pay any and all taxes, if applicable, when due with respect to the prize I will receive in connection with the Event.
9. If any part of this Quitclaim is deemed unenforceable, I agree that the rest will still apply to the fullest extent allowed by law.
10. If any statement I make in this Quitclaim is found to be false or misleading, I agree to return any prizes immediately upon request and accept any legal consequences.
11. I consent to the use of my personal data, including my name, email, and username, for marketing purposes. I also allow the Company, the Affiliated Parties, and the Other Parties to share and process this data in connection with the Event, in compliance with the Data Privacy Act.
12. By signing this document, I declare that I have read and understood this Quitclaim which is made willingly and voluntarily and with full knowledge or my rights under the law.
13. I attest to the truth of the above declaration and assume all the responsibilities and the risks of my, and my companions, if applicable, participation in the Event.

Signature Over Printed Name

DATE: _____

(Parental/Guardian Consent Form for Minor Participants follows)

**CONSENT OF PARENT/GUARDIAN
(For Participants Under 18 Years Old)**

I, the undersigned, am the parent/legal guardian of the minor participant named above. I confirm that I have read and understood this Release, Waiver, and Quitclaim, and I hereby consent to my child's participation in the Event. I further agree to be bound by the terms of this document and assume full responsibility for any obligations undertaken by the minor participant. I release and hold harmless the Company, the Affiliated Parties, the Other Parties, and their officers, employees, and agents from any and all claims, liabilities, or damages arising from the minor participant's participation in the Event.

Legal Guardian (For participants 13-17 years old)
Signature Over Printed Name

DATE: _____